

Granite Heron's Close-of-All-Evidence Rule 50(a) Motion Filed October 14, 2025

United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

At the close of all evidence, Granite Heron renews its request for judgment as a matter of law on causation only. It relies on the same specified ground raised October 10: no reasonable jury could find that the admitted transport deviation legally caused the full quality-disposition, replacement-cost, and delay consequences claimed by Blue Ember.

The defense evidence added testimony about retained sample activity, ordinary development risk, ledger classifications, and uncertainty within the delay model. Granite Heron contends this completed record reinforces its causal challenge. It does not broaden the motion to the distinct affirmative defense of failure to mitigate.

Cobalt Finch evidence was admitted for the jury's later evaluation of Blue Ember's post-event response. Granite Heron expressly leaves the reasonableness of that response and the size of a net deduction to the verdict questions. The renewed pre-verdict motion therefore seeks no ruling that the December opportunity establishes mitigation as a matter of law.

Completed record on lot disposition

The completed record confirms an excursion above minus sixty from 13:08 until 14:02 and a minus 42.8 maximum. It also confirms intact seals, return to range before delivery, and measurable activity in tested samples. Granite Heron accepts that the validation protocol treated continuous custody as significant but disputes whether Blue Ember proved total economic loss of the lot.

Dr. Mira Solis and the quality records distinguished validation suitability from universal destruction. Granite Heron argues that this distinction leaves an evidentiary gap between noncompliant process documentation and the claimed 1.35-million-dollar loss. Blue Ember responds that the intended purpose and absence of an adequate stability bridge made rejection a foreseeable result of the carrier's failure.

The Court must view that conflict in Blue Ember's favor at this stage. Granite Heron nevertheless preserves its position that the quality decision, limited alternate use, and retained activity do not provide a legally sufficient causal chain. This is the same issue identified when Blue Ember rested, informed now by the full trial evidence.

Completed record on gross economic loss

Brooks traced 850,000 dollars of replacement expense and two million dollars of bounded delay. Park conditionally accepted the gross model for her separate analysis but did not concede it. Granite Heron argues that several invoices reflect work inherent in continuing the development program and that forecasts cannot isolate the shipment from independent uncertainty with sufficient reliability.

Blue Ember presented pre-event planning records, excluded ordinary expense, applied its established risk adjustment, and ended the loss model at a bounded recovery point. It contends a jury can evaluate disagreements without speculation. The defense maintains that those safeguards do not cure the causal and foreseeability defects.

Granite Heron asks for judgment on the challenged gross categories, not an arithmetic substitution derived from post-event capacity. Its alternative arguments about Cobalt Finch begin only if Blue Ember first proves caused delay. The motion's narrow causal focus preserves the distinction reflected in the jury instructions and does not ask the Court to weigh the affirmative defense before the jury deliberates.

Relief and Blue Ember's response

Granite Heron requests entry of judgment on the contract claim or removal of any gross-damages component lacking legally sufficient causal support. It incorporates the October 10 motion only to the extent that document states the same causation ground. It does not incorporate every trial objection or ask that a different theory be inferred from broad references to damages.

Blue Ember responds that the integrated writings made quarantine and validation consequences foreseeable, the source records establish the Fletcher event, and the quality and financial evidence permit rational findings on each category. Blue Ember emphasizes that credibility and weight belong to the jury and that the carrier's own witnesses admitted the operational failure.

The Court heard argument outside the jury's presence and denied the motion. It found enough evidence for reasonable jurors to connect the excursion to rejection and separately assess direct and delay losses. The ruling did not decide the verdict and did not change the parties' burdens. The Court directed that causation, gross damages, and mitigation remain separate on the form.

Preservation statement before submission

This filing is intended to remove ambiguity about the subject placed before the Court. Granite Heron renews only its causation challenge: whether the excursion caused compensable rejection, replacement work, and delay. The carrier is not requesting pre-verdict judgment on whether Blue Ember failed to mitigate.

Although the record contains the Durham capacity offer, unfinished qualification work, Park's 1.5-million-dollar net model, and Brooks's contrary assessment, this motion leaves that contest to the jury. It does not assert that the evidence compels the full mitigation reduction. It does not request deletion of the mitigation interrogatories or direct an answer to them.

The parties and Court confirmed this limitation before closing arguments. Any renewed postverdict motion under Rule 50(b) must be evaluated against the ground actually stated here and in the October 10 motion. Contractual, evidentiary, and new-trial arguments remain subject to their own requirements and are not silently converted into additional Rule 50(a) grounds.